

1 ENGROSSED SENATE  
2 BILL NO. 1716

By: Howard of the Senate

3 and

4 Gise of the House

5  
6 [ Security Breach Notification Act - class action  
7 liability - exceptions - effective date ]  
8

9 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

10 SECTION 1. AMENDATORY 24 O.S. 2021, Section 165, as  
11 amended by Section 4, Chapter 406, O.S.L. 2025 (24 O.S. Supp. 2025,  
12 Section 165), is amended to read as follows:

13 Section 165. A. A violation of the Security Breach  
14 Notification Act that results in injury or loss to residents of this  
15 state may be enforced by the Attorney General or a district attorney  
16 in the same manner as an unlawful practice under the Oklahoma  
17 Consumer Protection Act.

18 B. Except as provided in subsection D of this section, the  
19 Attorney General or a district attorney shall have exclusive  
20 authority to bring an action and may obtain actual damages for a  
21 violation of the Security Breach Notification Act and a civil  
22 penalty not to exceed One Hundred Fifty Thousand Dollars  
23 (\$150,000.00) per breach of the security of the system or series of  
24 breaches of a similar nature that are determined in a single

1 investigation. Civil penalties shall be based upon the magnitude of  
2 the breach, the extent to which the behavior of the individual or  
3 entity contributed to the breach, and any failure to provide the  
4 notice required by Section 163 of this title.

5 C. 1. An individual or entity that uses reasonable safeguards  
6 and provides notice as required by Section 163 or 164 of this title  
7 shall not be subject to civil penalties and may use such compliance  
8 as an affirmative defense in a civil action filed under the Security  
9 Breach Notification Act.

10 2. An individual or entity that fails to use reasonable  
11 safeguards but provides notice as required by Section 163 or 164 of  
12 this title shall not be subject to the civil penalty set forth in  
13 subsection B of this section but shall be subject to actual damages  
14 and a civil penalty of Seventy-five Thousand Dollars (\$75,000.00).

15 3. A private entity shall not be liable in a class action  
16 resulting from a breach of the security of a system unless such  
17 breach was caused by the willful and wanton conduct or gross  
18 negligence of the private entity.

19 D. A violation of the Security Breach Notification Act by a  
20 state-chartered or state-licensed financial institution shall be  
21 enforceable exclusively by the primary state regulator of the  
22 financial institution.

23 SECTION 2. This act shall become effective November 1, 2026.  
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1 Passed the Senate the 16th day of March, 2026.

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3 \_\_\_\_\_  
4 Presiding Officer of the Senate

5 Passed the House of Representatives the \_\_\_\_ day of \_\_\_\_\_,  
6 2026.

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9 Presiding Officer of the House  
10 of Representatives